

was in fact governed by Art. 114(2) EPC 1973, and the discretionary power to refuse new requests for amendments was governed by Art. 123 EPC 1973 and the corresponding Implementing Regulations. As to the exercise of discretion under R. 71a EPC 1973 to admit or refuse amended claims, the board held that the discretion was to be exercised by considering all relevant factors which arose in a particular case and by balancing the applicant's interest in obtaining proper patent protection for his claimed invention and the EPO's interest in bringing the examination procedure to a speedy close by the issue of a decision (following G. 7/93, OJ 1994, 775). See also T. 545/08.

In T. 755/96 the board also drew a **distinction** between the **application stage** and the **opposition stage**. The reasons given for introducing R. 71a EPC 1973 made it clear that a particular concern was that in opposition proceedings other parties were not taken by surprise. Parties to opposition proceedings were often represented by professional representatives, who would need to consult their clients and technical experts for further instructions to deal with new requests or evidence. Thus, there could be good reasons to refuse material filed after the final date set under R. 71a EPC 1973, or to postpone oral proceedings. However, the same considerations did not apply to an examining division which had its own technical expertise and did not have to obtain instructions from third parties. If prepared for oral proceedings, it should normally, even in relation to requests filed at the oral proceedings, be in a position to assess whether a new request was clearly not allowable. An examining division which in exercising such discretion does not admit amended claims must give the reasons therefore.

In T. 712/97 the respondent (opponent) had filed a report of comparative experiments on the last day of the period set for filing comments pursuant to R. 71a(1) EPC 1973. The opposition division allowed this experimental report into the proceedings, but not the appellant's experimental report in response thereto. The board held that admitting the respondent's experimental report into the proceedings meant that the subject of the proceedings had changed within the meaning of R. 71a(1) EPC 1973 and that the report in question should therefore also have been admitted into the proceedings. That this report would not affect the outcome of the proceedings was in these circumstances not a valid consideration. A party was entitled to know that its response was admitted into the proceedings, even if it proved not to be decisive for the outcome before that instance.

In T. 484/99 the appellant (patentee) alleged that the refusal, under R. 71a EPC 1973, by the opposition division to consider or even look at amendments to the requests presented on the day of the oral proceedings before them amounted to a procedural violation. The board disagreed because it was clear from the wording of R. 71a(2) EPC 1973, that submissions by the patent proprietor presented after the final date did not need to be considered. In T. 64/02 the board stated that R. 71a(2) EPC 1973 also applied to the belated submission of amended patent claims in an auxiliary request, even if those claims had not been requested in the summons (see also T. 1067/08).

In T. 951/97 (OJ 1998, 440) the board held that the subject of the proceedings was changed within the meaning of R. 71a(1) and (2) EPC 1973, inter alia, where the examining division itself introduced a new document, which was pertinent new material, into the proceedings for the first time during oral proceedings convened following a

R. 71a EPC 1973 notification. In T.2434/09 the board held that the applicant did not have a right to continuation in writing if the department of first instance introduced a new document in oral proceedings and thereby changed the subject of the proceedings. The party's right to be heard under Art. 113(1) EPC 1973 was observed if the applicant was given an adequate amount of time to study the document and present comments.

In T.765/06 the examining division had pointed out in the summons that preparatory submissions and new claims should not be filed later than one month before the date of oral proceedings. Six days before the oral proceedings, the applicant filed new requests which the rapporteur, in a telephone conversation with the applicant, regarded as prima facie non-protectable and which were not admitted in the oral proceedings pursuant to R. 71a EPC 1973. The board found that conceding permission to file new claims did not comprise an assurance that such claims would be considered in the proceedings, with a considerable restriction of the time available for examination.

In T.798/05 the board held that R. 71a EPC 1973 did not constitute an absolute bar on late submissions in opposition proceedings, which would rule out prima facie examination. R. 71a EPC 1973 did not override or restrict the principle of ex officio examination enshrined in Art. 114(1) EPC 1973, since an implementing regulation ranked lower than an EPC Article. The actual wording of R. 71a EPC 1973 using the expressions "brauchen, need not, peuvent" left room for discretion over the admission of late submissions.

In T.937/09 the board held that, if the applicant filed amendments to the application before the final date set by the examining division under R. 116(1) EPC, the examining division could still refuse such amendments under R. 137(3) EPC. See also T.2355/09.

6.4. Communication under Article 15(1) RPBA 2020

6.4.1 General issues

Art. 15(1) RPBA 2020 now provides that a communication is to be issued by the board: "In order to help concentration on essentials during the oral proceedings, the Board shall issue a communication drawing attention to matters that seem to be of particular significance for the decision to be taken. The Board may also provide a preliminary opinion". The issue of a communication under Art. 15(1) RPBA 2007 was not mandatory.

6.4.2 Purpose of communication under Article 15(1) RPBA 2007 or Article 15(1) RPBA 2020

In T.1459/11 the board held that the purpose of the communication under Art. 15(1) RPBA 2007 was to establish the framework of the oral proceedings (see also T.2006/13). The communication did not – explicitly or implicitly – represent an invitation or opportunity to file further written submissions or to shift the focus of the case to be heard at oral proceedings (see also T.751/16). The terms of the appeal were rather determined by the statement of grounds of the appeal and the reply thereto (Art. 12(2) RPBA 2007). Consequently there was no legal basis in either the EPC or the RPBA for the filing of a "response" to a communication pursuant to Art. 15(1) RPBA 2007. A board was under no

obligation to take such a "response" into account. Any submissions – whether arguments or requests – contained in such a "response" might constitute an amendment to the case presented.

This view was confirmed with regard to Art. 15(1) RPBA 2020 in e.g. T 2703/16. See also e.g. T 752/16, T 995/18 and T 2271/18.

6.4.3 Boards not bound by communication under Article 15(1) RPBA 2007 or Article 15(1) RPBA 2020

In T 1635/13 the board held that it was clearly set out in the board's communication that it expressed the "preliminary and non-binding" opinion of the board to streamline and prepare the oral proceedings. Therefore it was self-evident that the board could come to a different evaluation of the facts and submissions during the subsequent proceedings, in particular the oral proceedings, for whatever reason. Such a different evaluation was in itself neither a sufficient reason for admitting subsequently filed requests nor a fundamental procedural defect (see R 3/09). See also T 614/89 (in relation to Art. 11(2) RPBA 1980), T 2006/13.

For case law on Art. 15(1) RPBA 2020, see the chapters V.A.4.5.5c) "Objections or arguments raised for the first time during oral proceedings" and V.A.4.5.6i) "Change in board's preliminary opinion" (see in particular T 995/18).

6.4.4 Boards' discretion to send communication under Article 15(1) RPBA 2007

According to Art. 15(1) RPBA 2007 it was in the board's discretion to send a communication under Art. 15(1) RPBA 2007. Under Art. 15(1) RPBA 2020 this is now mandatory. The introduction of Art. 15(1) RPBA 2020 superseded G 6/95 (OJ 1996, 649) in this respect. In G 6/95 the Enlarged Board held that the boards continued to have discretion as to whether or not to send a communication when issuing a summons to oral proceedings, as provided for in Art. 11(2) RPBA 1980, since the then newly introduced R. 71a(1) EPC 1973 (now R. 116(1) EPC) did not apply to the boards of appeal. The Administrative Council could not amend the Implementing Regulations in such a way that the effect of an amended rule was in conflict with the RPBA – adopted under Art. 23(4) EPC 1973 by the Presidium of the boards of appeal and approved by the Council as reflecting the boards' independence. See inter alia T 382/02, T 355/13.

6.5. Location of oral proceedings

In T 1012/03, the applicant, having been summoned to oral proceedings before the examining division in The Hague, had requested that oral proceedings take place in Munich instead. The board noted that Art. 116 EPC 1973 did not expressly stipulate the location where oral proceedings had to take place. The board examined whether the President had the power to establish examining divisions in The Hague and concluded that such a power was provided for by Art. 10(1), (2)(a) and (b) EPC 1973. The board concluded that in the case in hand the justification for conducting oral proceedings in The

Hague could be deduced from Art. 116 EPC 1973 in conjunction with Art. 10(1), (2)(a) and (b) EPC 1973. See also T 689/05, T 933/10, T 1142/12.

The examining division's rejection of the applicant's request that the oral proceedings be held in Munich instead of The Hague must be reasoned, R 111(2) EPC, R 68(2) EPC 1973 (see T 689/05, T 933/10).

In T 1142/12 the board considered that the practical aspects of the organisation of oral proceedings were matters of EPO management, which came under the power of the President of the EPO as provided by Art. 10(2) EPC. The board held that the examining divisions were clearly not allowed to take a decision on this matter. When not acceding to a request to hold oral proceedings in Munich instead of The Hague, the examining division did not take a decision but only expressed the way the EPO was managed. Consequently, that issue was not subject to appeal, nor could the board refer a question on the venue of oral proceedings to the Enlarged Board. In R 13/14 the Enlarged Board clarified that the wording used in T 1142/12 did not mean that the board had refused to decide on the issue; rather, the board had implicitly decided on the request and refused it.

In G 2/19 (OJ 2020, A87) the Enlarged Board held that oral proceedings before the boards of appeal at their site in Haar do not infringe Art. 113(1) and 116(1) EPC. The Enlarged Board observed that the fact that the boards currently performed their judicial function in Haar was the result of organisational acts adopted and implemented by the mandated organs of the European Patent Organisation in exercise of their powers.

7. Conduct of oral proceedings

7.1. Length and structuring of oral proceedings

7.1.1 Speaking time during oral proceedings and interruptions by the board

In T 601/05 of 2 December 2009, in the evening of the second day of the oral proceedings, the board had limited the speaking time to ten minutes for each party for a "final round" of discussion with respect to a particular argument. In the board's view, the limitation of time was a necessary procedural measure by which the right to be heard pursuant to Art. 113(1) and 116 EPC had not been violated. On the one hand, it was the attorneys' responsibility to structure their pleadings in such a way that the time frame of the oral proceedings, which had been communicated to the parties with the summons and had not been objected by them, can be complied with. On the other hand, it was the board's responsibility to conduct oral proceedings in such a way that the time frame was kept to and to ensure that the case was ready for decision at the end of the oral proceedings. It followed from Art. 15(4) and (6) RPBA 2007 that the structuring of the oral proceedings was within the discretion of the board.

In T 792/12 the board held that a chairman may interject in a party's submissions to ensure that the proceedings are efficiently conducted, in particular to avoid a party repeating arguments. Any member of the board may interrupt to ask questions which are considered important for reaching a decision.

7.1.2 Oral proceedings scheduled from the start for more than one day

In T 1642/11 the board held that when oral proceedings were scheduled for more than one day, a party could not have the expectation that the hearing would finish on the first day. If a party was absent on the second day, the oral proceedings could continue without that party (R. 115(2) EPC and Art. 15(3) RPBA 2007).

7.1.3 Continuation of oral proceedings beyond the last scheduled day

In case T 2534/10 the chairman of the opposition division had proposed, late in the evening of the only scheduled hearing date, that the oral proceedings be continued the next day. Although the patent proprietor had objected to this proposal, the proceedings had been continued the next day, and both parties had attended. The board observed that the two months' notice to be given in summons to oral proceedings under R. 115 EPC met the parties' fundamental need to be able to plan for and estimate the likely course of those proceedings. They had the same need when it came to continuing proceedings on a calendar day other than that specified in the summons. Accordingly, a fresh summons had to be issued if proceedings were to be continued beyond the calendar day specified in the original summons.

In T 1674/12 the opposition division had continued the oral proceedings on 9 September 2011, even though the summons was only for 8 September and two opponents had objected. The board held that, in the light of T 2534/10, the opposition division had committed a procedural error, irrespective of the opponents' objections: to continue the proceedings on 9 September, it had to have the express consent of all parties. T 2534/10 had also ruled that remittal was necessary only if the error had affected the final decision; a case could be remitted only to recommence procedural acts performed on the second day, not covered by the summons. In the case in hand, the proceedings would have taken essentially the same course, even if the division had adjourned the oral proceedings on the evening of 8 September rather than continuing them the following day.

7.1.4 Duration of deliberations

In T 1138/12 the board pointed out that the EPC did not prescribe for how long an opposition division had to deliberate to reach a decision. It was therefore conceivable that the members, having discussed the case in advance, might find their preliminary opinion confirmed by the submissions at the oral proceedings and then agree that that was the case by, for instance, simply making eye contact or nodding at the end of the discussion with the parties. Both the duration and the form of an opposition division's deliberations depended on the scope and complexity of the case in hand, the degree of compatibility of the members' opinions, which might diverge, playing a major role in this regard.

7.2. Excluding the public from oral proceedings

In T 1401/05 of 20 September 2006 the board excluded the public from that part of the oral proceedings which concerned the exclusion of certain documents from file inspection. Under Art. 116(4) EPC, oral proceedings shall in principle be public in so far as the board